

Nishant Yadav v. State of U.P.

Allahabad High Court · Division Bench · 4 January 2023 · Writ - C No. 1474 of 2019 · **Writ petition dismissed for want of prosecution; interim order, if any, discharged; the vires challenge was not decided.**

HEADNOTE

A writ petition challenging the vires of clauses (d) and (f) of Section 3 of Part-B of the U.P. Electricity Supply Code (Thirteenth Amendment), 2018 was, after notice was issued to the Advocate General and the respondents, dismissed for want of prosecution when no one appeared to press it, and any interim order stood discharged. The constitutional challenge was not adjudicated.

FACTUAL SUMMARY

Nishant Yadav challenged, as ultra vires, clauses (d) and (f) of Section 3 of Part-B of the U.P. Electricity Supply Code (Thirteenth Amendment), 2018 (notified 10 August 2018). After several adjournments and listings, on 20 February 2019 the Court issued notice to the Advocate General and the respondents and called for counter-affidavits. When the matter was eventually called in the revised list on 4 January 2023, no one appeared for the petitioner to press the petition.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::13th-Amdt-2018-PartB-s3

Vires challenge to a 2018 Code amendment — dismissed for non-prosecution

HOLDING

A challenge to the vires of clauses (d) and (f) of Section 3 of Part-B of the U.P. Electricity Supply Code (Thirteenth Amendment), 2018 was admitted to notice but ultimately dismissed for want of prosecution when no one appeared to press it; the vires question was not decided and any interim order was discharged.

FLAG Dismissed for non-prosecution without a merits decision. The order does not describe the content of the challenged clauses, so the provision is keyed descriptively to the Thirteenth Amendment (2018).

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VIRES OF CLAUSES (D) AND (F) OF SECTION 3 OF PART-B OF THE U.P. ELECTRICITY SUPPLY CODE (THIRTEENTH AMENDMENT), 2018

Not decided; the petition was dismissed for want of prosecution. This case is no authority on the validity of those clauses.